CAMDEN COUNTY, NJ
CAMDEN COUNTY CLERK'S OFFICE
DEED-OR BOOK 11353/1989
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Camden County
Document Summary Sheet

CAMDEN COUNTY CLERK
520 MARKET ST
CAMDEN NJ 08102

Return Name and Address

Bruce A. Gunther, Esq.
417 Third Avenue
Haddon Heights, NJ 08035

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Submitting Company	
Document Date *(mm/dd/yyyy)*	12/30/2019
Document Type	Deed
No. of Pages of the Original Signed Document *(Including the cover sheet)*	9
Consideration Amount *(If applicable)*	$1.00

	Name(s) *(Last Name First Name Middle Initial Suffix) (or Company Name as written)*	**Address** *(Optional)*
First Party *(Grantor or Mortgagor or Assignor)* *(Enter up to five names)*	The Estate of Emmons G. Elzey, Jr. aka E. Guy Elzey, Jr. by Emmons G. Elzey, III and Nancy Elzey Binder, Co-Executors	
Second Party *(Grantee or Mortgagee or Assignee)* *(Enter up to five names)*	NEB Haddon Properties, L.L.C.	

Parcel Information *(Enter up to three entries)*

Municipality	Block	Lot	Qualifier	Property Address
Haddonfield	21	1.01		101-111 Kings Highway Haddonfield, NJ 08033

Reference Information *(Enter up to three entries)*

Book Type	Book	Beginning Page	Instrument No.	Recorded/File Date

**DO NOT REMOVE THIS PAGE.*

DOCUMENT SUMMARY SHEET (COVER SHEET) IS PART OF CAMDEN COUNTY FILING RECORD. RETAIN THIS PAGE FOR FUTURE REFERENCE.

DEED

Prepared by:

Bruce A. Gunther, Esq.

This Deed is made on December 30, 2019 between:

Grantors:

The Estate of Emmons G. Elzey, Jr., aka
E. Guy Elzey, Jr., by Emmons G. Elzey, III
and Nancy Elzey Binder, Co-Executors
65 Ellis Street
Haddonfield, NJ 08033

Grantee:

NEB Haddon Properties, L.L.C.
8 West Edinburgh Road
Ocean City, NJ 08226

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The words "Grantor" and "Grantee" shall mean all Grantors and all Grantees listed above.

Transfer of Ownership. The Grantor grants and conveys (transfers ownership of) the property described below to the Grantee. This transfer is made for the sum of **ONE DOLLAR AND NO CENTS ($1.00)**.

Tax Map Reference. (N.J.S.A.46:15-1.1) Municipality of Haddonfield, Lot 1.01, Block 21 on the Official Tax Map of the Borough of Haddonfield, New Jersey.

Property. The property consists of the land and all the buildings and structures on the land in the Borough of Haddonfield, County of Camden, and State of New Jersey. The legal description is attached to this deed and made a part hereof.

BEING Lot 1.01, Block 21 on the tax map of the Borough of Haddonfield.

BEING commonly known as 101-111 Kings Highway East, Haddonfield, New Jersey 08033.

BEING the same lands and premises which became vested in Robert H. Dewees and E. Guy Elzey, Jr. by deed from Josephine W. Bentley, surviving trustee under the Last Will and Testament of Emma G. Wallworth, deceased, dated March 30, 1973 and recorded April 2, 1973 in the Office of the Camden County Register of Deeds in Deed Book 3276 at Page 774&c.

THEREAFTER the said E. Guy Elzey, Jr., aka Emmons G. Elzey, Jr., departed this life on March 4, 2018, leaving a Last Will and Testament which was duly proved and recorded on March 16, 2018 in the Camden County Surrogate's Court as Docket No. 2018-0618. Letters Testamentary were issued to Emmons G. Elzey, III and Nancy Elzey Binder, the Co-Executors.

THIS DEED only serves to convey that portion of this property titled to E. Guy Elzey, Jr., and in no way changes the title to the other undivided one-half interest in this property originally titled to Robert H. Dewees on March 30, 1973 and his successors as reflected in a Deed dated November 9, 2004 and recorded December 27, 2004 in Deed Book 7683, Page 1295 and subsequently in a Deed dated November 2, 2018 and recorded December 6, 2018 in Deed Book 11030, Page 763.

SUBJECT to any and all mortgages, liens, judgments, restrictions, covenants and easements of record.

LEGAL DESCRIPTION FOR
101 – 111 KINGS HIGHWAY EAST
BLOCK 21, LOT 1.01
HADDONFIELD, NEW JERSEY

TRACT #1: BEGINNING at the point of intersection of the Northeasterly line of Tanner Street with the New Northwesterly line of Kings Highway East as adopted by Ordinance passed by the Borough Commission February 16, 1932; thence (1) North 29 degrees, 23 minutes, 50 seconds West along the Northeasterly line of Tanner Street, 72.64 feet to a point corner to lands now or formerly Computer Investment & Leasing Corp.; thence (2) North 56 degrees, 54 minutes, 50 seconds East, along the said line 102.69 feet to a point in line of lands now or formerly of Isaac A. Braddock; thence (3) South 32 degrees, 49 minutes, 00 seconds East along said lands, 74.11 feet to a point in the said Northwesterly line of Kings Highway East; thence (4) Southwestwardly along said Highway 107.03 feet to a point and place of beginning.

TRACT #2: BEGINNING at a point in the Northerwesterly line of Kings Highway East (formerly Main Street) said point being 46.14 feet Southwestwardly from the Northwesterly corner of Mechanic Street and kings Highway East, said point also being in the division lines of 12 and 14, Block 21 of the Official Tax Map of the Borough of Haddonfield, revised to 1970; thence (1) Southwestwardly along the said Highway 117.61 feet to a point said point being in the division line of Lots 9 and 15 on said Tax Map; thence (2) Northwestwardly along said division line 138.43 feet to a point in the line of land now or formerly of the Borough of Haddonfield, conveyed to said Borough by Deed 2112, page 456, recorded in the Register of Deeds Office on July 11, 1957; thence (3) Northeastwardly along the said Borough lands 41.64 feet, more or less, to a point corner to same, said point being in the division line of Lots 15 and 16 on said Tax Map; thence (4) Southeastwardly along the said division line 45.60 feet, more or less, to a point in the division line of Lot 12 of said Tax Map; thence (5) Northeastwardly along the division line of Lots 12 and 16 of said Tax Map 76 feet, more or less, to a point in the division line of Lot 14 on said Tax Map; thence (6) Southeastwardly along said division line 92 feet, 4 inches to a point in the Northwesterly line of Kings Highway East and place of beginning.

TRACT #2B: BEGINNING at a point in the Southwesterly line of lot known as #119 Kings Highway, distant 92.83 feet from the Northwesterly side line of Kings Highway; thence in a Northwesterly direction and along said Southwesterly side line of No. 119 Kings Highway, 30 feet to a point; thence in a Northeasterly direction with an interior angle of 89 degrees 51 minutes 20 seconds, 53 feet to a point; thence in a Southeasterly direction with an interior angle of 90 degrees 08 minutes 40 seconds 30 feet to a point; thence in a Southwesterly direction with an interior angle of 89 degrees 51 minutes 20 seconds 53 feet to the place of beginning.

TRACT #3: BEGINNING at a point in the Southwesterly line of Mechanic Street distant 122.96 feet Northwestwardly from a corner formed by the intersection of the Southwesterly line of Mechanic Street with the revised Northwesterly line of Kings Highway East as adopted by Ordinance dated February 16, 1932, said beginning point is also in the boundary division line between lands of the Borough of Haddonfield and lands of Agnus M. Cooper; thence in a Southwesterly direction parallel with Kings Highway East and along the boundary division line between lands of the Borough of Haddonfield and lands of Agnus M. Cooper a distance of 63.70 feet to a point corner to lands of Agnus M. Cooper and Emma G. Wallworth Estate and in the Southeasterly boundary line of lands of the Borough of Haddonfield, the last mentioned point is the place of beginning of the lands hereby described thence in a Southwesterly direction along the boundary division line between lands of the Borough of Haddonfield and lands of the Emma G. Wallworth Estate and in a line which is parallel with the revised Northwesterly line of Kings Highway East, a distance of 53.43 feet to a point corner to lands of the Emma G. Wallworth Estate and lands of the Joseph F. Wallworth Estate and lands of the Borough of Haddonfield; thence in a Northwesterly direction and forming an interior angle of 90 degrees 15 minutes and 40 seconds and along the boundary division line

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between lands of the Joseph F. Wallworth Estate and lands of the Borough of Haddonfield a distance of 15.60 feet; thence in a Northeasterly direction and forming an interior angle of 89 degrees 44 minutes and 20 seconds and parallel with the revised Northwesterly line of Kings Highway East a distance of 53.43 feet to a point in the extended boundary division line between lands of Agnus M. Cooper and lands of the Emma G. Wallworth Estate; thence in a Southeasterly direction and forming an interior angle of 90 degrees, 15 minutes and 40 seconds and along a line which is the extended boundary division line between land of Agnus M. cooper and lands of the Emma G. Wallworth Estate a distance of 15.60 feet to the place of beginning.

TRACT #4: BEGINNING at a point in the new Northwesterly line of Main Street (Kings Highway East) as adopted by Borough Ordinance on February 16, 1932, corner to land formerly of Sarah Hopkins, and others, said point being 101.64 feet Southwestwardly from lot formerly of the Estate of Samuel C. Smith, deceased; thence North 27 degrees 15 minutes West along land formerly of Sarah Hopkins and others, 158 feet 8 inches, more or less, to a corner to lot conveyed by Isaac A. Braddock and Anna c., his wife, to Benjamin P. Shreve, by deed dated October 12, 1886, and recorded November 3, 1886 in Book 126, page 427; thence North 61 degrees 5 minutes East partly along said lot parallel with Main Street (Kings Highway East) 10 feet, more or less, to a point distant 10 feet Northeastwardly from last course measured at right angles thereto; thence South 27 degrees 15 minutes East running parallel with the first course and distant 10 feet Northeastwardly therefrom measured at right angles thereto 158 feet 8 inches, more or less, to a point in the aforesaid Northwesterly line of Main Street (Kings Highway East); thence South 61 degrees 5 minutes West along the aforesaid Northwesterly line of Main Street (Kings Highway East) 10 feet, more or less, to the point and place of beginning.

EXCEPTING THEREOUT AND THEREFROM that part of the above described premises included within Deed from the Real Estate and Investment Company of Haddonfield (Corp. N.J.) to Lewis Starr, dated February 28, 1906, recorded March 10, 1906 in Deed Book 303, page 247, which premises in said deed is described as follows: BEGINNING on the Northwesterly side of Main Street 41.64 feet Westwardly of land of Estate of Samuel C. Smith, deceased; thence along the Northwesterly side of Main Street, South 61 degrees 5 minutes West 50 feet; thence Northwardly at right angles to Main Street 147.60 feet; thence Eastwardly parallel with Main Street 50 feet; thence Southwardly at right angles to Main Street 147.60 feet to beginning.

ALSO EXCEPTING THEREOUT AND THEREFROM that part of the premises first above described included within deed from Josephine W. Bentley and Cecil Bentley, Executors and Trustees under the will of Emma G. Wallworth, deceased, to the Borough of Haddonfield (munic. Corp. N.J.), dated April 17, 1957, recorded July 11, 1957 in Deed Book 2112, page 456, which premises in said deed is described as follows: STARTING at a point in the revised Northwesterly line of Kings Highway East as adopted by Ordinance dated February 16, 1932, distant 117.03 feet Northeastwardly from a corner formed by the intersection of the revised Northwesterly line of Kings Highway East with the Northeasterly line of Tanner Street, said starting point is also in the Northeasterly line of a 10 feet wide alley; thence in a Northwesterly direction along the Northeasterly line of the aforesaid 10 feet wide alley and in a line which is at right angles to Kings Highway East, a distance of 148.10 feet to a point corner to lands of Philip and Ethel Glassman and lands of Joseph F. Wallworth Estate which last mentioned point is the place of beginning on the lands hereby being described; and continuing thence in a Northwesterly direction along the Northeasterly line of the aforesaid 10 feet wide alley and in a line which if extended would be at right angles to Kings Highway East, a distance of 12 feet to a point corner to lands of G. Frederick Rexon; thence in a Northeasterly direction and along the boundary division line between lands of the Estate of Joseph F. Wallworth and lands of G. Frederick Rexon, a distance of 92.78 feet to a point corner to lands of the Estate of Joseph F. Wallworth, lands of G. Frederick Rexon and lands of the Borough of Haddonfield; thence in a Southeasterly direction and along the division line between lands of the Borough of Haddonfield and lands of Joseph F. Wallworth Estate, a distance of 21.64 feet to a corner; thence in a Southwesterly direction and parallel with the second course and also parallel to Kings Highway East, a distance of 41.64 feet, more or less, to a point corner to lands of Joseph F. Wallworth Estate and lands of Philip and Ethel

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Glassman; thence in a Northwesterly direction and along the boundary division line between lands of Joseph F. Wallworth Estate and lands of Philip and Ethel Glassman, a distance of 9.64 feet to a point distant 12 feet Southeastwardly if measured at right angles thereto from the boundary division line between lands of the Estate of Joseph Wallworth and lands of G. Frederick Rexon; thence in a Southwesterly direction along the boundary line between lands of Philip and Ethel Glassman and lands of Joseph F. Wallworth Estate, a distance of 50 feet to the place of beginning.

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No Promises by Grantor. The Grantor makes no promises to Grantee as to the quality of title hereby conveyed, but instead conveys to Grantee whatever right, title and interest the Grantor has in the property.

Signatures. The Grantors sign this Deed as of the date at the beginning of this document.

_____(SEAL)
Emmons G. Elzey, III, Co-Executor of the Estate of E. Guy Elzey, Jr.

_____(SEAL)
Nancy Elzey Binder, Co-Executor of the Estate of E. Guy Elzey, Jr.

Witnessed or Attested by:

_____

STATE OF NEW JERSEY COUNTY OF CAMDEN SS.:

I CERTIFY that on December 30, 2019, **Emmons G. Elzey, III** and **Nancy Elzey Binder**, as Co-Executors of the Estate of Emmons G. Elzey, Jr., aka E. Guy Elzey, Jr., personally came before me and stated to my satisfaction that these persons are the makers of the attached deed, and that this deed was made for **$1.00** as the full and actual consideration paid or to be paid for the transfer of title. (Such consideration is defined in N.J.S.A.45:15-5.)

_____
Notary Public
ELIZABETH G. GUNTHER
NOTARY PUBLIC OF NEW JERSEY
My Commission Expires May 5, 2022

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DEED	Dated: December 30, 2019
The Estate of Emmons G. Elzey, Jr., aka E. Guy Elzey, Jr., by Emmons G. Elzey, III and Nancy Elzey Binder, Co-Executors, Grantors TO **NEB Haddon Properties, L.L.C.**, Grantee	Record and return to: Bruce A. Gunther, Esq. 417 Third Avenue Haddon Heights, NJ 08035

GIT/REP-3
(8-19)
(Print or Type)

State of New Jersey
Seller's Residency Certification/Exemption

Seller's Information

Name(s)
The Estate of Emmons G. Elzey, Jr., aka E. Guy Elzey, Jr., by Emmons G. Elzey, III, Co-Executor

Current Street Address
65 Ellis Street

City, Town, Post Office	State	ZIP Code
Haddonfield	NJ	08033

Property Information

Block(s)	Lot(s)	Qualifier
21	1.01	

Street Address
101-111 Kings Highway East

City, Town, Post Office	State	ZIP Code
Haddonfield	NJ	08033

Seller's Percentage of Ownership	Total Consideration	Owner's Share of Consideration	Closing Date
50%	$1.00	$0.50	12/30/2019

Seller's Assurances (Check the Appropriate Box) (Boxes 2 through 16 apply to Residents and Nonresidents)

1. ☐ Seller is a resident taxpayer (individual, estate, or trust) of the State of New Jersey pursuant to the New Jersey Gross Income Tax Act, will file a resident Gross Income Tax return, and will pay any applicable taxes on any gain or income from the disposition of this property.
2. ☐ The real property sold or transferred is used exclusively as a principal residence as defined in 26 U.S. Code section 121.
3. ☐ Seller is a mortgagor conveying the mortgaged property to a mortgagee in foreclosure or in a transfer in lieu of foreclosure with no additional consideration.
4. ☐ Seller, transferor, or transferee is an agency or authority of the United States of America, an agency or authority of the State of New Jersey, the Federal National Mortgage Association, the Federal Home Loan Mortgage Corporation, the Government National Mortgage Association, or a private mortgage insurance company.
5. ☐ Seller is not an individual, estate, or trust and is not required to make an estimated Gross Income Tax payment.
6. ☒ The total consideration for the property is $1,000 or less so the seller is not required to make an estimated Income Tax payment.
7. ☐ The gain from the sale is not recognized for federal income tax purposes under 26 U.S. Code section 721, 1031, or 1033 (CIRCLE THE APPLICABLE SECTION). If the indicated section does not ultimately apply to this transaction, the seller acknowledges the obligation to file a New Jersey Income Tax return for the year of the sale and report the recognized gain.
   ☐ Seller did not receive non-like kind property.
8. ☐ The real property is being transferred by an executor or administrator of a decedent to a devisee or heir to effect distribution of the decedent's estate in accordance with the provisions of the decedent's will or the intestate laws of this State.
9. ☐ The real property being sold is subject to a short sale instituted by the mortgagee, whereby the seller agreed not to receive any proceeds from the sale and the mortgagee will receive all proceeds paying off an agreed amount of the mortgage.
10. ☐ The deed is dated prior to August 1, 2004, and was not previously recorded.
11. ☐ The real property is being transferred under a relocation company transaction where a trustee of the relocation company buys the property from the seller and then sells the house to a third party buyer for the same price.
12. ☐ The real property is being transferred between spouses or incident to a divorce decree or property settlement agreement under 26 U.S. Code section 1041.
13. ☐ The property transferred is a cemetery plot.
14. ☐ The seller is not receiving net proceeds from the sale. Net proceeds from the sale means the net amount due to the seller on the settlement sheet.
15. ☐ The seller is a retirement trust that received an acknowledgment letter from the Internal Revenue Service that the seller is a retirement trust, and is therefore not required to make the estimated Gross Income Tax payment.
16. ☐ The seller (and/or spouse/civil union partner) originally purchased the property while a resident of New Jersey as a member of the U.S. Armed Forces and is now selling the property as a result of being deployed on active duty outside of New Jersey. (Only check this box if applicable and neither boxes 1 nor 2 apply.)

Seller's Declaration

The undersigned understands that this declaration and its contents may be disclosed or provided to the New Jersey Division of Taxation and that any false statement contained herein may be punished by fine, imprisonment, or both. I furthermore declare that I have examined this declaration and, to the best of my knowledge and belief, it is true, correct and complete. By checking this box ☐ I certify that a Power of Attorney to represent the seller(s) has been previously recorded or is being recorded simultaneously with the deed to which this form is attached.

Date	Signature (Seller)	Indicate if Power of Attorney or Attorney in Fact
12/30/19	Emmons G. Elzey III	
Date	Signature (Seller)	Indicate if Power of Attorney or Attorney in Fact

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GIT/REP-3
(8-19)
(Print or Type)

State of New Jersey
Seller's Residency Certification/Exemption

Seller's Information

Name(s)
The Estate of Emmons G. Elzey, Jr., aka E. Guy Elzey, Jr., by Nancy Elzey Binder, Co-Executor

Current Street Address
65 Ellis Street

City, Town, Post Office | State | ZIP Code
Haddonfield | NJ | 08033

Property Information

Block(s) | Lot(s) | Qualifier
21 | 1.01 |

Street Address
101-111 Kings Highway East

City, Town, Post Office | State | ZIP Code
Haddonfield | NJ | 08033

Seller's Percentage of Ownership | Total Consideration | Owner's Share of Consideration | Closing Date
50% | $1.00 | $0.50 | 12/30/2019

Seller's Assurances (Check the Appropriate Box) (Boxes 2 through 16 apply to Residents and Nonresidents)

1. ☐ Seller is a resident taxpayer (individual, estate, or trust) of the State of New Jersey pursuant to the New Jersey Gross Income Tax Act, will file a resident Gross Income Tax return, and will pay any applicable taxes on any gain or income from the disposition of this property.
2. ☐ The real property sold or transferred is used exclusively as a principal residence as defined in 26 U.S. Code section 121.
3. ☐ Seller is a mortgagor conveying the mortgaged property to a mortgagee in foreclosure or in a transfer in lieu of foreclosure with no additional consideration.
4. ☐ Seller, transferor, or transferee is an agency or authority of the United States of America, an agency or authority of the State of New Jersey, the Federal National Mortgage Association, the Federal Home Loan Mortgage Corporation, the Government National Mortgage Association, or a private mortgage insurance company.
5. ☐ Seller is not an individual, estate, or trust and is not required to make an estimated Gross Income Tax payment.
6. ☒ The total consideration for the property is $1,000 or less so the seller is not required to make an estimated Income Tax payment.
7. ☐ The gain from the sale is not recognized for federal income tax purposes under 26 U.S. Code section 721, 1031, or 1033 (CIRCLE THE APPLICABLE SECTION). If the indicated section does not ultimately apply to this transaction, the seller acknowledges the obligation to file a New Jersey Income Tax return for the year of the sale and report the recognized gain.
   ☐ Seller did not receive non-like kind property.
8. ☐ The real property is being transferred by an executor or administrator of a decedent to a devisee or heir to effect distribution of the decedent's estate in accordance with the provisions of the decedent's will or the intestate laws of this State.
9. ☐ The real property being sold is subject to a short sale instituted by the mortgagee, whereby the seller agreed not to receive any proceeds from the sale and the mortgagee will receive all proceeds paying off an agreed amount of the mortgage.
10. ☐ The deed is dated prior to August 1, 2004, and was not previously recorded.
11. ☐ The real property is being transferred under a relocation company transaction where a trustee of the relocation company buys the property from the seller and then sells the house to a third party buyer for the same price.
12. ☐ The real property is being transferred between spouses or incident to a divorce decree or property settlement agreement under 26 U.S. Code section 1041.
13. ☐ The property transferred is a cemetery plot.
14. ☐ The seller is not receiving net proceeds from the sale. Net proceeds from the sale means the net amount due to the seller on the settlement sheet.
15. ☐ The seller is a retirement trust that received an acknowledgment letter from the Internal Revenue Service that the seller is a retirement trust, and is therefore not required to make the estimated Gross Income Tax payment.
16. ☐ The seller (and/or spouse/civil union partner) originally purchased the property while a resident of New Jersey as a member of the U.S. Armed Forces and is now selling the property as a result of being deployed on active duty outside of New Jersey. (Only check this box if applicable and neither boxes 1 nor 2 apply.)

Seller's Declaration

The undersigned understands that this declaration and its contents may be disclosed or provided to the New Jersey Division of Taxation and that any false statement contained herein may be punished by fine, imprisonment, or both. I furthermore declare that I have examined this declaration and, to the best of my knowledge and belief, it is true, correct and complete. By checking this box ☐ I certify that a Power of Attorney to represent the seller(s) has been previously recorded or is being recorded simultaneously with the deed to which this form is attached.

12/30/19 — Nancy E Binder
Date — Signature (Seller) — Indicate if Power of Attorney or Attorney in Fact

Date — Signature (Seller) — Indicate if Power of Attorney or Attorney in Fact

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RTF-1 (Rev. 7/14/10)
MUST SUBMIT IN DUPLICATE

STATE OF NEW JERSEY

AFFIDAVIT OF CONSIDERATION FOR USE BY SELLER

(Chapter 49, **P.L.**1968, as amended through Chapter 33, **P.L.** 2006) **(N.J.S.A.** 46:15-5 et seq.)

BEFORE COMPLETING THIS AFFIDAVIT, PLEASE READ THE INSTRUCTIONS ON THE REVERSE SIDE OF THIS FORM.

STATE OF NEW JERSEY
} SS.
COUNTY Camden County Municipal Code 0417

FOR RECORDER'S USE ONLY
Consideration $ _____
RTF paid by seller $ _____
Date _____ By _____

MUNICIPALITY OF PROPERTY LOCATION Haddonfield

*Use symbol "C" to indicate that fee is exclusively for county use.

(1) PARTY OR LEGAL REPRESENTATIVE *(See Instructions #3 and #4 on reverse side)*

Deponent, Emmons G. Elzey, III, Co-Executor, being duly sworn according to law upon his/her oath,
(Name)
deposes and says that he/she is the Grantor in a deed dated 12/30/2019 transferring
(Grantor, Legal Representative, Corporate Officer, Officer of Title Company, Lending Institution, etc.)

real property identified as Block number 21 Lot number 1.01 located at

101-111 Kings Highway East, Haddonfield and annexed thereto.
(Street Address, Town)

(2) CONSIDERATION $ 1.00 *(Instructions #1 and #5 on reverse side)* ☒ no prior mortgage to which property is subject.

(3) Property transferred is Class 4A 4B 4C (circle one). If property transferred is Class 4A, calculation in Section 3A below is required.

(3A)**REQUIRED CALCULATION OF EQUALIZED VALUATION FOR ALL CLASS 4A (COMMERCIAL) PROPERTY TRANSACTIONS:**
(See Instructions #5A and #7 on reverse side)
Total Assessed Valuation ÷ Director's Ratio = Equalized Assessed Valuation

$_____ ÷ _____% = $_____

If Director's Ratio is less than 100%, the equalized valuation will be an amount greater than the assessed value. If Director's Ratio is equal to or in excess of 100%, the assessed value will be equal to the equalized valuation.

(4) FULL EXEMPTION FROM FEE *(See Instruction #8 on reverse side)*
Deponent states that this deed transaction is fully exempt from the Realty Transfer Fee imposed by **C.** 49, **P.L.** 1968, as amended through **C.** 66, **P.L.** 2004, for the following reason(s). Mere reference to exemption symbol is insufficient. Explain in detail.
(a) For consideration of less than $100.00

(5) PARTIAL EXEMPTION FROM FEE *(Instruction #9 on reverse side)*
NOTE: All boxes below apply to grantor(s) *only*. **ALL BOXES IN APPROPRIATE CATEGORY MUST BE CHECKED**. Failure to do so will void claim for partial exemption. Deponent claims that this deed transaction is exempt from State portions of the Basic, Supplemental, and General Purpose Fees, as applicable, imposed by **C.** 176, **P.L.** 1975, **C.** 113, **P.L.** 2004, and **C.** 66, **P.L.** 2004 for the following reason(s):

A. **SENIOR CITIZEN** Grantor(s) ☐ 62 years of age or over. * *(Instruction #9 on reverse side for A or B)*
B. **BLIND PERSON** Grantor(s) ☐ legally blind or; *
DISABLED PERSON Grantor(s) ☐ permanently and totally disabled ☐ receiving disability payments ☐ not gainfully employed*

Senior citizens, blind persons, or disabled persons must also meet **all of the following** criteria:
☐ Owned and occupied by grantor(s) at time of sale. ☐ Resident of State of New Jersey.
☐ One or two-family residential premises. ☐ Owners as joint tenants must all qualify.

*IN CASE OF HUSBAND AND WIFE, PARTNERS IN A CIVIL UNION COUPLE, ONLY ONE GRANTOR NEED QUALIFY IF TENANTS BY THE ENTIRETY.

C. **LOW AND MODERATE INCOME HOUSING** *(Instruction #9 on reverse side)*
☐ Affordable according to H.U.D. standards. ☐ Reserved for occupancy.
☐ Meets income requirements of region. ☐ Subject to resale controls.

(6) NEW CONSTRUCTION *(Instructions #2, #10 and #12 on reverse side)*
☐ Entirely new improvement. ☐ Not previously occupied.
☐ Not previously used for any purpose. ☐ "**NEW CONSTRUCTION**" printed clearly at top of first page of the deed.

(7) RELATED LEGAL ENTITIES TO LEGAL ENTITIES *(Instructions #5, #12, #14 on reverse side)*
☐ No prior mortgage assumed or to which property is subject at time of sale.
☐ No contributions to capital by either grantor or grantee legal entity.
☐ No stock or money exchanged by or between grantor or grantee legal entities.

(8) Deponent makes this Affidavit to induce county clerk or register of deeds to record the deed and accept the fee submitted herewith in accordance with the provisions of Chapter 49, **P.L.** 1968, as amended through Chapter 33, **P.L.** 2006.

Subscribed and sworn to before me
this 30th day of December , 2019
Elizabeth G. Gunther

ELIZABETH G. GUNTHER
NOTARY PUBLIC OF NEW JERSEY
My Commission Expires May 5, 2022

Emmons G. Elzey, III
Signature of Deponent

65 Ellis Street
Haddonfield, NJ 08033
Deponent Address

XXX-XXX- 665
Last three digits in Grantor's Social Security Number

Emmons G. Elzey, III, Co-Executor
Grantor Name

65 Ellis Street
Haddonfield, NJ 08033
Grantor Address at Time of Sale

Name/Company of Settlement Officer

FOR OFFICIAL USE ONLY
Instrument Number _____ County _____
Deed Number _____ Book _____ Page _____
Deed Dated _____ Date Recorded _____

County recording officers shall forward one copy of each RTF-1 form when Section 3A is completed to:

STATE OF NEW JERSEY
PO BOX 251
TRENTON, NJ 08695-0251
ATTENTION: REALTY TRANSFER FEE UNIT

The Director of the Division of Taxation in the Department of the Treasury has prescribed this form as required by law, and may not be altered or amended without prior approval of the Director. For information on the Realty Transfer Fee or to print a copy of this Affidavit, visit the Division of Taxation website at:
www.state.nj.us/treasury/taxation/lpt/localtax.htm

This is not an official document